

		that a practice may be deemed unfair even if not specifically proscribed by some other law. "Because Business and Professions Code section 17200 is written in the disjunctive, it establishes three varieties of unfair competition-acts or practices which are unlawful, or unfair, or fraudulent. 'In other words, a practice is prohibited as "unfair" or "deceptive" even if not "unlawful" and vice versa.'" (<i>Cel-Tech Commc'ns, Inc. v. Los Angeles Cellular Tel. Co.</i> (1999) 20 Cal. 4th 163, 180.) Plaintiff alleged that by denying coverage based on errors which were solely within Defendant's control, being aware of the errors, and still issuing the policy based on the misrepresentations is conduct prohibited by law. (Complaint ¶ 87.) Accepting premium payments, failing to accurately communicate and verify information, and subsequently denying coverage based on those errors are unfair practiced. (Complaint ¶ 88.) Defendant also engaged in fraudulent business practices by misrepresenting the accuracy of the application, scope of coverage, and acceptance of premiums. (Complaint ¶ 89.) All of Plaintiff's allegations are derivative of the other COA in the complaint and therefore must stand or fall with the claims made therein. (<i>Med. Marijuana, Inc. v. ProjectCBD.com</i> (2020) 46 Cal. App. 5th 869, 896.) As the motion was DENIED as to the COA for implied covenant of good faith and fair dealing which Plaintiff in part bases her UCL claims on (Complaint ¶ 87, 89-90), the UCL claim survives. The motion is DENIED as to this COA.
15	Ibarra v. Diaz	The motion to set aside default filed by defendant Elizabeth Diaz (Defendant) is GRANTED. The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. (Code Civ. Proc., § 473(b).) The law favors judgments on the merits. Thus, on a motion for relief from default, "doubts must be resolved <i>in favor of relief</i>, with an order denying relief scrutinized [on appeal] more carefully than an order granting it." (<i>Lasalle v. Vogel</i> (2019) 36 Cal.App.5th 127, 134 [emphasis in original].) Initially, the Court notes Defendant failed to file proof of service showing the motion was timely served on plaintiff Bertha P. Ibarra (Plaintiff). Although this defect was waived by Plaintiff opposing the motion on the merits (see <i>Carlton v. Quint</i> (2000) 77 Cal.App.4th 690, 697), Defendant is admonished to timely file proof of service for all future motions. This motion is timely filed within six months after default was entered against Defendant. The motion is also accompanied by a copy of the proposed answer to the complaint. (See Ex. A to

		Motion.) Defendant has shown the default was entered due to Defendant's mistake, inadvertence, surprise, or excusable neglect. Accordingly, the motion is GRANTED. Defendant is to file her answer to the complaint within 10 days of the date of this order. The clerk of the court shall give notice.
16	Herda v. FAC US LLC	Cont.
17		
18		
19		
20		
21		